

Master Services Agreement

Between Northwind Traders and Acme Supply Co., effective 1 July 2026.

Customer	Northwind Traders
Supplier	Acme Supply Co.
Agreement number	MSA-2026-0417
Effective date	1 July 2026
Initial term	24 months

1. Scope of services

The Supplier shall provide the goods and services described in each Statement of Work agreed under this Agreement. Each Statement of Work forms part of this Agreement and is governed by it. Where a Statement of Work conflicts with this Agreement, this Agreement prevails unless the Statement of Work says otherwise and is signed by both parties.

The Supplier shall perform with reasonable skill and care, using personnel who are suitably qualified and experienced for the work assigned to them.

2. Payment terms

Invoices are payable net 30 days from the date of issue. Amounts are stated in United States dollars and exclude any applicable sales tax.

Term	Value	Notes
Payment window	Net 30	From date of issue
Currency	USD	Excludes sales tax
Late payment	1.5% monthly	Accrues daily
Disputed lines	Clock paused	Until resolved in writing
Purchase order	Required	Quote on every invoice

Invoices must quote the purchase order number. An invoice received without one may be returned unpaid.

3. Confidentiality

Each party shall keep confidential all information disclosed by the other that is marked confidential or that a reasonable person would treat as confidential. This obligation survives termination by three years.

Confidential information does not include information that is or becomes public through no fault of the receiving party, was already known to it without restriction, or is independently developed without reference to the disclosure.

4. Data protection

Where the Supplier processes personal data on behalf of the Customer, it shall do so only on documented instructions, shall impose confidentiality obligations on anyone authorised to process that data, and shall assist the Customer in responding to requests from data subjects.

5. Warranties

Each party warrants that it has full power to enter into this Agreement and that doing so does not breach any other obligation binding on it.

6. Limitation of liability

Neither party excludes liability for death or personal injury caused by negligence, for fraud, or for any other liability that cannot lawfully be excluded. Subject to that, each party's total liability under this Agreement is limited to the charges paid in the twelve months before the claim.

7. Termination

Either party may terminate on 60 days written notice, or immediately if the other commits a material breach that is not remedied within 30 days of written notice.

8. Governing law

This Agreement is governed by the laws of the State of New York, and the parties submit to the exclusive jurisdiction of its courts.

9. Change control

Either party may request a change to a Statement of Work. A change takes effect only when both parties have signed a written change note setting out the change, its effect on the charges, and its effect on the timetable.

10. Subcontracting

The Supplier may subcontract any part of the services only with the Customer's prior written consent, which shall not be unreasonably withheld. The Supplier remains responsible for the acts and omissions of its subcontractors as if they were its own.

11. Insurance

The Supplier shall maintain, throughout the term and for two years after it ends, public liability and professional indemnity cover appropriate to the services, and shall produce evidence of that cover on request.

12. Intellectual property

Each party retains ownership of the intellectual property it held before this Agreement. Intellectual property created specifically for the Customer under a Statement of Work vests in the Customer on payment in full for the work in which it was created.

13. Force majeure

Neither party is liable for failure to perform caused by an event beyond its reasonable control, provided it notifies the other promptly and takes reasonable steps to limit the effect. If the event continues for more than 90 days either party may terminate on written notice.

14. Notices

Notices under this Agreement shall be in writing and sent to the address given above, or to any other address a party notifies for the purpose. A notice sent by email takes effect when acknowledged by the recipient.

15. Entire agreement

This Agreement, together with the Statements of Work agreed under it, is the entire agreement between the parties on its subject matter and replaces any earlier understanding on that subject.

Signatures

Signed for and on behalf of the parties by their authorised representatives.

Northwind Traders

Acme Supply Co.

Name and title

Name and title

Date

Date